ISAAC JERERA
and
HARUZIVISHE JERERA
versus
THE PRESIDENT OF ZIMBABWE N.O
and
THE MINISTER OF LOCAL GOVERNMENT, PUBLIC WORKS AND NATIONAL HOUSING N.O
and
THE SECRETARY FOR LOCAL GOVERNMENT, PUBLIC WORKS AND NATIONAL HOUSING N.O
and
LAST DZIVAKWE (In his capacity as Chief Nyajena designate)
and
THE CHIEF DIRECTOR (TRADITIONAL LEADERSHIP SUPPORT SERVICES) IN THE MINISTRY OF LOCAL GOVERNMENT, PUBLIC WORKS N.O
and
THE PRESIDENT, NATIONAL CHIEFS COUNCIL N.O

HIGH COURT OF ZIMBABWE
WAMAMBO J
HARARE; 28 July 2026

Urgent chamber application

T Moyo and S Tizirai, for the applicants
P Chibanda, for the 1st to 3rd respondents
S Ringoziwa and L. Kovi, for the 4th respondent
P Chibanda, for the 5th respondent
No appearance for the 6th respondent

WAMAMBO J:

This is an urgent chamber application by the applicants to interdict the installation ceremony of the Fourth Respondent as substantive Chief Nyajena pending the determination of the review application filed of record under case number HCH 2215/26.

The Applicants submitted that their constitutional, customary, and cultural rights, together with the integrity of the lawful succession process within the Nyajena clan, were under imminent threat arising from the intended appointment and installation of the Fourth Respondent, Last Dzivakwe, as substantive Chief Nyajena. They argued that unless the Court did intervene urgently, the impugned appointment would be implemented before the pending review application under case number HCH 2215/26 was determined, thereby causing serious prejudice to the Applicants and the Nyajena clan.

The Applicants submitted that the matter was urgent because they became aware on or about 4 May 2026 that the Respondents had proceeded with the appointment of the Fourth Respondent through a letter dated 4 May 2026, and that the official installation ceremony was scheduled for 9 May 2026. Upon becoming aware of those developments, the Applicants did act promptly and without delay to seek urgent relief from the Court.

The Applicants further submitted that urgency was underscored by the fact that, if the installation did proceed on 9 May 2026, the Fourth Respondent would be clothed with official recognition, status, and authority before the legality, rationality, and procedural propriety of the appointment were determined. Once installed, the Fourth Respondent could begin to exercise powers and functions attaching to the office of Chief Nyajena, thereby fundamentally altering the status *quo* and undermining the effectiveness of the pending review proceedings.

The Applicants submitted that they stood to suffer irreparable harm if urgent relief was not granted. The installation of a person not lawfully entitled to the chieftainship would undermine and distort the customs, traditions, and established succession practices of the Nyajena clan. It would also likely give rise to conflict, uncertainty, and division within the clan and the broader traditional leadership structures. The resulting prejudice would not be confined to the Applicants personally, but would extend to the legitimacy and stability of the chieftainship itself.

The Applicants submitted that they did not have any satisfactory alternative remedy other than approaching the Court on an urgent basis for immediate interim protection pending the determination of the review application. Given the imminence of the installation, no other remedy would be adequate, effective, or capable of preventing the prejudice that would arise if

the disputed appointment were implemented before the legality of the process was judicially determined.

Finally, the Applicants submitted that the balance of convenience did overwhelmingly favour the granting of the interim relief sought. If the relief was granted, the Respondents would suffer no prejudice beyond the temporary postponement of the proposed appointment and installation pending determination of the legality of the process. If, however, the relief was refused and the installation did proceed, the Applicants and the wider Nyajena clan would suffer grave and irreversible prejudice, including the entrenchment of an unlawful appointment and disruption of the lawful customary succession process.

The applicants pray for the following relief:

> "TERMS OF THE FINAL ORDER SOUGHT
>
> 1. That the appointment and or installation ceremony of the Fourth Respondent as substantive Chief Nyajena set for 9 May 2026 be and is hereby stayed and/or postponed pending the hearing of an application for review of the decision to appoint the Fourth Respondent as the substantive Chief Nyajena.
> 2. That the applicant shall forthwith file and serve their review application upon the Respondents, who shall have the right to oppose the same in terms of the rules of court.
> 3. That the costs of this application shall be borne by the Respondents only if they oppose it.
>
> INTERIM RELIEF GRANTED
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> Pending the determination of this application, the Applicant is granted the following relief:
>
> 1. That the installation ceremony of the Fourth Respondent as substantive Chief Nyajena be and is hereby stayed and/or postponed pending the determination of the review application filed of record under case number HCH 2215/26.
> 2. In the event that the appointment of the Fourth Respondent has already been effected by the First Respondent, the Fourth Respondent shall, pending the final determination of the review application filed of record under case number HCH 2215/26 be and is hereby temporarily barred and interdicted from exercising, performing, or purporting to perform any functions, powers, or duties of the Chief.
> 3. In the event that the appointment of the Fourth Respondent has already been effected by the First Respondent, the Fourth Respondent shall, pending the final determination of the review application filed of record under case number HCH 2215/26 be temporarily barred and interdicted from receiving any benefits accruing from, or associated with, the position of substantive Chief Nyajena."

The Fourth Respondent submitted two points *in limine* before addressing the merits.

He submitted that the Applicants' matter was not urgent and did not deserve to be heard on the urgent roll. He stated that the Applicants became aware of the intended installation on 4 May 2026, while the installation was scheduled for 9 May 2026. Despite this knowledge, they failed to act timeously and only filed the application on 8 May 2026, a day before the installation. He further submitted that the Applicants served the application on his legal practitioners on 14 May 2026, well after the installation date, which did not align with the urgency alleged. He argued that the alleged urgency was self-created and could not justify invoking the Court's urgent jurisdiction. He added that the Applicants' legal practitioner failed to apply his mind dispassionately and instead misdirected the Court, thereby improperly constructing urgency where none existed.

Secondly, the Fourth Respondent submitted that there was no proper application for review. He argued that in matters of this nature, where the Applicants sought to challenge the discretionary powers of the President, proof was required to show efforts made to resolve the dispute through the President, which the Applicants failed to provide.

On the merits, the Fourth Respondent submitted that the application was misplaced, as the Applicants sought to interfere with the executive functions of the President. He explained that there were two competing houses, Mateveke and Mupandasekwa. Since the late Dzingai was from the Mateveke house, the Mupandasekwa house was entitled to produce the next candidate. Within Mupandasekwa, there were three houses—Mapfekera, Madzore, and Mupfurashanga. He submitted that Mapfekera and Madzore had already taken their turns, leaving Mupfurashanga entitled to the throne. Therefore, the Applicants, hailing from Madzore, did not have a clear right to ascendancy, and their application was made in bad faith.

He submitted that when the selection process resumed, he produced the Commission of Inquiry report but was advised to wait for his turn. The process then proceeded with the appointment of Doba Marubwa, whose right was accepted. Being aggrieved, he filed his founding affidavit and appealed to the Office of the President through the Minister of Local Government, raising concerns about irregularities. His appeal was considered, and he was appointed Chief Nyajena by the President, as reflected in the appointment letter dated 4 May 2026 and the instrument issued on 27 April 2026.

The Fourth Respondent submitted that the Applicants' reliance on the Minutes of the Provincial Chiefs Assembly was misplaced, as the meeting was disputed, unsanctioned, and its recommendations had no binding effect. He denied that the matter was urgent, emphasizing that he had already been lawfully appointed Chief Nyajena by the President prior to the filing of the application. He argued that the process had concluded at executive level, and there was no ongoing irregularity justifying urgent intervention.

The Fourth Respondent submitted that the application lacked urgency, did not establish any rights, was improperly founded, and should therefore be dismissed with costs.

The second, third and fifth respondents made the following arguments. They raised two points *in limine*.

Firstly, that the matter is not urgent. The Applicants were aware of the intended installation scheduled for 9 May 2026. However, for reasons unknown, they decided to file their application on 8 May 2026 and subsequently served the Second, Third and Fifth Respondents on 12 May 2026. The Applicant failed to act timeously by failing to approach this Honourable Court immediately when they became aware of the installation. Therefore, this Application must be dismissed because it has no reasonable grounds to conclude that it is urgent.

Secondly, they argued that the applicants had not exhausted all the internal remedies. They averred that the doctrine of exhaustion of internal remedies requires that a party must first utilize all available administrative processes before approaching the courts for review. In the present matter, the Applicants did not exhaust all the internal remedies available to them. Therefore, this Application must be dismissed.

The Constitution of Zimbabwe Amendment (No.20) Act, 2013 under s 283(c)(ii) provides that disputes concerning the appointment, suspension and removal of traditional leaders must be resolved by the President on the recommendation of the provincial assembly of Chiefs through the Minister responsible for traditional leaders. Therefore, the only person who can firstly resolve the disputes with regards to the appointment and removal of Chiefs is the First Respondent on the recommendation of the provincial assembly of Chiefs through the Second, Third and Fifth Respondents who are responsible for the administration traditional leaders. In this instance, the Applicants has failed to comply with s 283(c) (ii) of the Constitution. They jumped the gun by petitioning the court prematurely, without first availing themselves of the

internal remedies prescribed by the governing framework. This approach constitutes a classic case of placing the cart before the horse, thereby circumventing institutional mechanisms intended for orderly dispute resolution. Such procedural missteps not only undermine the integrity of the internal system but also risk trivializing the purpose and efficacy of those remedies.

The respondents submitted that the matter lacked urgency because the Fourth Respondent was already appointed Chief on 27 April 2026, and the installation ceremony did not have any legal effect. They emphasized that the Applicants were aware of the process since July 2025 and of the installation date of 9 May 2026, yet they did delay until 8 May 2026 to file their application, which did create fictitious urgency.

They submitted that the Applicants failed to establish any *prima facie* rights, as being descendants of the previous Chief did not automatically confer eligibility. Succession did fall under s 283 of the Constitution and the Traditional Leaders Act, which did require adherence to custom and tradition. The nomination and cession of rights to the Fourth Respondent did comply with these requirements.

The respondents further submitted that the Applicants did not stand to suffer irreparable harm, while granting the relief sought prejudiced the Respondents by disrupting lawful administrative procedures. They argued that the Applicants had alternative remedies, such as approaching the Provincial Assembly of Chiefs, instead of prematurely seeking relief from the court.

In conclusion, the respondents argued that the application lacked merit, did not have urgency, was defective and frivolous, and therefore did not justify the relief sought and should be dismissed with costs.

The Applicants contend that they acted with promptitude upon becoming aware on 4 May 2026 of the Fourth Respondent's impending installation scheduled for 9 May 2026. They filed this application on 8 May 2026. However, a crucial fact cannot be ignored: the application was only served on the Respondents between 12 May and 14 May 2026.

By the time this matter came before me, the date set for the installation, 9 May 2026, had already passed. It is an established principle of our law that an urgent interdict is a preventative

remedy designed to halt a future, threatened wrong. It is not a remedy designed to undo an event that has already occurred.

Because the ceremony sought to be stayed has already taken place, the primary relief seeking to "stay or postpone" that ceremony has been completely overtaken by events. For this Court to issue an injunction against an event that has already occurred would be a classic exercise in futility. It would amount to a *brutum fulmen*—an empty, unenforceable legal declaration.

While the Applicants may have drafted their papers quickly, their failure to secure an interim order or effect service *before* the event took place means the window for urgent preventative intervention has closed. Events have overtaken the urgency.

To escape the reality of the concluded installation, the Applicants fall back on their alternative plea, asking this Court to urgently interdict the Fourth Respondent from exercising his statutory powers, performing his duties, or receiving traditional leader benefits pending the outcome of the review under case number HCH 2215/26.

The gripe between the sub-houses of the Nyajena clan is a substantive dispute regarding historical lineage and administrative propriety. That dispute is currently pending before the review court. The Applicants have failed to demonstrate how the Fourth Respondent merely *exercising administrative or customary functions* in the interim causes them personal, irreparable prejudice that cannot wait for the review judgment.

The assertions of community disharmony and structural instability are speculative at best. Any perceived administrative overreach or incorrect decisions made by the Fourth Respondent during this period can be fully cured, set aside, or remedied once the review application is determined. There is no irreparable harm occurring daily that justifies invoking this Court's extraordinary urgent jurisdiction.

The point *in limine* raised by the Respondents regarding lack of urgency is well-founded and is hereby sustained. The primary relief seeking to stay or postpone the installation ceremony scheduled for 9 May 2026 has been rendered completely academic, as the date has passed and the event has already occurred. Consequently, granting the final order sought by the Applicants to stop the ceremony would be a *brutum fulmen*, an empty and legally unenforceable declaration.

Furthermore, the alternative prayer to interdict the Fourth Respondent from performing his customary duties or receiving standard benefits fails to establish any ongoing irreparable harm that would justify bypassing ordinary court timelines. Any interim administrative actions can be fully addressed and remedied through the final determination of the substantive dispute. The underlying question of chieftainship succession remains a matter to be resolved under the pending review application. Considering the finding that there is a lack of urgency, there is no need to consider the other points *in limine* raised.

Regarding costs, the position is trite as it was aptly put by the court in *Crief Investments (Pvt) Ltd and Anor* v *Grand Home Centre (Pvt) Ltd & 4 Ors* HH 12/18 wherein the court remarked:

> "The general rule is that costs follow the event, in other words, the successful party is usually awarded costs."

Consequently, the court makes the following order:

IT IS ORDERED THAT:

1. The application is not urgent.
2. The application be and is hereby struck off the roll of urgent matters with no order as to costs.

WAMAMBO J……

Tamuka Moyo Partners, applicants' legal practitioners
Kanoti and Partners, fourth respondent's legal practitioners
Civil Division of the Attorney General, first, second, third, fifth and sixth respondents.